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County: los-angeles

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Case Number: 26STCV08323 Hearing Date: July 15, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

KAMI

BROYLES,

Plaintiff,

vs.

PLINY

PORTER, et al.

Defendants.

Case No.:

26STCV08323

Hearing

Date:

July 15, 2026

[TENTATIVE]

ORDER OVERRULING DEMURRER IN PART AND SUSTAINING DEMURRER IN PART WITH LEAVE TO AMEND

I. BACKGROUND

Plaintiff Kami Broyles (“Plaintiff”) filed this action against defendants Pliny Porter (“Mr. Porter”) and Leslie Jean Porter (“Defendant”) arising from an alleged breach of contract for attorney’s fees, in which defendants allegedly failed to pay $14,226.74 in attorney’s fees. The Complaint alleges Mr. Porter entered into a fee agreement with The Law Offices of Hayes F. Michel (“Firm”) in October 2023. Plaintiff is the assignee of the legal claims of the Firm. The complaint alleges four causes of action: (1) Breach of Written Contract; (2) Breach of Implied Contract; (3) Unjust Enrichment; and (4) Promissory Fraud.

On May 8, 2026, Defendant filed a demurrer to Plaintiff’s entire Complaint. Plaintiff filed a late opposition on July 6, 2026. Defendant replied.

II. LEGAL STANDARD

Code of Civil Procedure section 430.10[1] states: “The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds: (a) The court has no jurisdiction of the subject of the cause of action alleged in the pleading; (b) The person who filed the pleading does not have the legal capacity to sue; (c) There is another action pending between the same parties on the same cause of action; (d) There is a defect or misjoinder of parties; (e) The pleading does not state facts sufficient to constitute a cause of action; (f) The pleading is uncertain. As used in this subdivision, uncertain includes ambiguous and unintelligible; and (g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct."

As
a general matter, in a demurrer proceeding, the defects must be apparent on the
face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004)
116 Cal.App.4th 968, 994.) "A demurrer
tests the pleading alone, and not the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs.
(2007) 153 Cal.App.4th 1308, 1315.) As
such, the court assumes the truth of the complaint's properly pleaded or
implied factual allegations. (Ibid.) The only issue a demurrer is concerned with
is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th
740, 747.)

Where
a demurrer is sustained, leave to amend must be allowed where there is a
reasonable possibility of successful amendment.
(Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the
court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC
(2015) 244 Cal.App.4th 118, 226.)
However, "[i]f there is any reasonable possibility that the plaintiff
can state a good cause of action, it is error to sustain a demurrer without
leave to amend." (Youngman v. Nevada
Irrigation Dist. (1969) 70 Cal.2d 240, 245).

"[W]hile
a statute of limitations normally sets the time within which proceedings must
be commenced once a cause of action accrues, the statute of repose limits the
time within which an action may be brought and is not related to accrual. Indeed, 'the injury need not have occurred,
much less have been discovered. Unlike
an ordinary statute of limitations which begins running upon accrual of the
claim, [the] period contained in a statute of repose begins when a specific
event occurs, regardless of whether a cause of action has accrued or whether
any injury has resulted.' [Citation.] A statute of repose thus is harsher than a
statute of limitations in that it cuts off a right of action after a specified
period of time, irrespective of accrual or even notice that a legal right has
been invaded. [Citation.]" (Giest v. Sequoia Ventures, Inc. (2000)
83 Cal.App.4th 300, 305.)

III. DISCUSSION

As a preliminary matter, Defendant filed a notice of non-opposition on July 6, 2026, arguing the Court should sustain the demurrer based on Plaintiff's failure to file an opposition. Additionally, Defendant argues in reply that Plaintiff's Opposition is not in compliance with California Rules of Court rule 3.1113 and therefore may be construed as admission that the demurrer is well taken. (Rep., p. 5.) The Court exercises its discretion to review Plaintiff's late opposition on the merits.

Defendant demurs to the entire Complaint for failure to allege facts sufficient to state the cause of action. (Dem., p. 3.) Defendant argues that she is not a party to the underlying fee agreement, made no representation, promise, or undertaking to the Firm or Plaintiff, and received no benefit from the services performed under the fee agreement. (Dem., p. 5.)

In opposition, Plaintiff argues the Complaint properly alleges Defendant was a party to an implied contract, that legal services would be performed for Defendant and Mr. Porter, and that both Defendant and Mr. Porter would pay for those services. (Opp., p. 2.)

A. First Cause of Action – Breach of Written Contract

Defendant argues the Complaint does not allege Defendant is a party to the fee agreement, that she signed the fee agreement, or that she authorized Mr. Porter to bind her to the fee agreement. (Dem., pp. 6-7.) Defendant further argues the first cause of action fails because the writing of the fee agreement is not set forth in the complaint or attached and incorporated by reference. (Dem., p. 7.)

In opposition, Plaintiff agrees Defendant did not sign the fee agreement and argues the first cause of action is not alleged against Defendant. (Opp., p. 2.)

In reply, Defendant misconstrues Plaintiff's argument. Defendant argues Plaintiff concedes that the first cause of action does not lie against Defendant, thus the demurrer should be sustained as to the first cause of action. However, Defendant argues the first cause of action is not alleged against Defendant, only against Mr. Porter and Does 1-25. Therefore, there are no allegations of breach of written contract against Defendant.

Accordingly, Defendant's demurrer is OVERRULED as moot as to the first cause of action.

B. Second Cause of Action – Breach of Implied Contract

Defendant argues that the Complaint fails to allege any facts that Defendant manifested assent to any agreement; therefore, no implied contract is alleged. (Dem., p. 7.)

"An implied contract is one, the existence and terms of which are manifested by conduct." (Civ. Code § 1621.) "A cause of action for breach of implied contract has the same elements as does a cause of action for breach of contract, except that the promise is not expressed in words but is implied from the promisor's conduct." (Aton Center, Inc. v. United Healthcare Insurance Co. (2023) 93 Cal. App. 5th 1214, 1230.) "[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (Oasis West Realty, LLC v. Goldman (2011) 51 Cal. 4th 811, 821.)

Plaintiff's Complaint alleges the following: Mr. Porter and Plaintiff agreed the Firm's representation should be extended to include the legal representation of Defendant. (Compl., ¶ 9.) Over a period of more than a year, the Firm represented Defendant pursuant to terms of the fee agreement, with the understanding Mr. Porter and Defendant would be jointly responsible for the payment. (Compl., ¶ 9.) Defendant breached the implied contract by failing to pay. (Compl., ¶ 10.) The Firm performed all obligations under the implied contract and, as a result of the breach, has been damaged. (Compl., ¶¶ 11, 12.)

Here, Plaintiff does not allege Defendant manifested assent to the implied contract by conduct. The Complaint merely states the Firm represented Defendant pursuant to the terms of the fee agreement. However, it fails to allege any conduct by Defendant that reflects assent to the implied contract. The Complaint does not allege Defendant was even aware of the contract, as the allegation states Mr. Porter and the Firm agreed the representation should be extended to include the representation of Defendant, without alleging conduct on Defendant's part. As a result, Plaintiff has failed to allege facts sufficient to support a cause of action for breach of implied contract against Defendant because Plaintiff has failed to allege the existence of a contract.

Further, to the extent Defendant argues in reply that there cannot be both an implied contract and an express contract, Defendant is correct. (See Wal-Noon Corp. v. Hill (1975) 45 Cal.App.3d 605, 613 [finding there cannot be a valid, express contract and an implied contract covering the same subject matter, existing at the same time].) However, as discussed above, the Complaint does not allege Defendant is a party to the valid, signed, express contract. (See Compl., ¶¶ 5-7.) Therefore, the Complaint is only alleging Defendant is a party to the implied contract, and Defendant's argument is inapposite.

Accordingly, Defendant's demurrer is SUSTAINED WITH LEAVE TO AMEND as to the second cause of action.

C. Third Cause of Action – Unjust Enrichment

Defendant argues the Complaint fails to allege Defendant requested services from the Firm or that any service rendered to Mr. Porter conferred any cognizable benefit on Defendant. (Dem., p. 8.) Defendant further argues "unjust enrichment" is not a freestanding cause of action, but rather a theory of restitution. (Dem., p. 8.)

"The

elements for a claim of unjust enrichment are receipt of a benefit and unjust retention of the benefit at the expense of another. The theory of unjust enrichment requires one who acquires a benefit which may not justly be retained, to return either the thing or its equivalent to the aggrieved party so as not to be unjustly enriched." (Lyles v. Sangadeo-Patel (2014) 225 Cal.App.4th 759, 769, quotation marks and citations omitted.)

Notably, "[u]njust enrichment is not a cause of action"; it is simply "a restitution claim." (Hill v. Roll International Corp. (2011) 195 Cal.App.4th 1295, 1307; see also Melchior v. New Line Productions, Inc. (2003) 106 Cal.App.4th 779, 793 ["there is no cause of action in California for unjust enrichment"].)

Here, Plaintiff has attempted to plead a cause of action giving rise to a right of restitution. However, the Court has found Plaintiff has not sufficiently alleged facts to support a cause of action for breach of implied contract, specifically that an implied contract ever existed between the Firm and Defendant. As a result, Plaintiff has not sufficiently alleged facts of a cause of action giving rise to a right of restitution to support an unjust enrichment theory.

Accordingly, Defendant's demurrer is SUSTAINED WITH LEAVE TO AMEND as to the third cause of action.

D. Fourth Cause of Action – Promissory Fraud

Defendant argues the Complaint fails to identify any specific representation made by Defendant to Plaintiff or the Firm. (Dem., p. 9.) Defendant further argues any representations made by Mr. Porter cannot be imputed to Defendant without specifically pleaded facts establishing agency or conspiracy, which the Complaint fails to do. (Dem., p. 9.)

"Promissory

fraud is a subspecies of the action for fraud and deceit. A promise to do something necessarily implies the intention to perform; hence, where a promise is made without such intention, there is an implied misrepresentation of fact that may be actionable fraud. The elements of promissory fraud (i.e., of fraud or deceit based on a promise made without any intention of performing it) are: (1) a promise made regarding a material fact without any intention of performing it; (2) the existence of the intent not to perform at the time the promise was made; (3) intent to deceive or induce the promisee to enter into a transaction; (4) reasonable reliance by the promisee; (5) nonperformance by the party making the promise; and (6) resulting damage to the promise." (Behnke v. State Farm General Insurance Co. (2011) 196 Cal.App.4th 1443, 1453, citation and quotation marks omitted.) The facts constituting the alleged fraud must be alleged factually and specifically as to every element of fraud, as the policy of "liberal construction" of the pleadings will not ordinarily be invoked. (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.)

The Complaint alleges as follows: Defendant made repeated false representations to the Firm from 2023 to 2025, with knowledge of those false representations. (Compl., ¶ 17.) The false representations included assertions Defendant and Mr. Porter were trustworthy, that there was little to no risk of non-payment, that payment would be made, and that any delay in repayment would be promptly rectified. (Compl., ¶ 17.) Defendant and Mr. Porter made these representations to induce the Firm to rely on the representations in deciding to continue performing legal services, and the Firm justifiably relied on these false representations to its detriment. (Compl., ¶ 17.)

Here, the Complaint fails to sufficiently allege facts to support a cause of action for promissory fraud. The Complaint alleges Defendant made false representations, that the Firm reasonably relied on the misrepresentations, and the Firm was damaged as a result.
However, Plaintiff fails to allege with the requisite specificity that Defendant had no intention of payment, or that the intent not to pay existed at the time of Defendant's alleged false representations. It is not enough to allege false representations were made, the Complaint must also allege Defendant made a promise without any intention of performing on said promise.
As a result, the Complaint does not sufficiently allege facts to support all elements of a cause of action for promissory fraud.

Accordingly, Defendant's demurrer is
SUSTAINED WITH LEAVE TO AMEND as to the fourth cause of action.

IV. CONCLUSION

Defendant Leslie Jean Porter's demurrer to
Plaintiff's Complaint is OVERRULED as to the first cause of action and
SUSTAINED WITH LEAVE TO AMEND as to the second, third, and fourth causes of
action.

Defendant is ordered to give notice.

DATED:
July 15, 2026

____

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

• Parties are encouraged to meet and
confer after reading this tentative ruling to see if they can reach an
agreement.

• If a party intends to submit on this
tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by
the case number. The body of the email must include the hearing date and time,
counsel's contact information, and the identity of the party submitting.

• Unless all parties submit by email to this
tentative ruling, the parties should arrange to appear remotely (encouraged) or
in person for oral argument. You should assume that others may appear at the
hearing to argue.

• If the parties neither submit nor appear at
hearing, the Court may take the motion off calendar or adopt the tentative

ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated statutory references are to the Code of Civil Procedure.